

Constitution of India: Education Articles, Schedules, Amendments and Delhi's Status

भारत का संविधान: शिक्षा संबंधी अनुच्छेद, अनुसूचियाँ, संशोधन और दिल्ली की स्थिति

Constitution of India: Education Articles, Schedules, Amendments and Delhi's Status

What UPSC asks on this

1. "Which Amendment inserted or moved X?" The 86th gave Art 21A; the 42nd moved education to the Concurrent List; the 7th gave Art 350A and 350B; the 93rd gave Art 15(5); the 44th gave Art 30(1A).
2. Statement sets on Art 21A, Art 45 and Art 51A(k): the age band, the Part they sit in, who is bound, whether a court can enforce them, and the date they came into force.
3. Match-the-following on Articles 28, 29, 30, 41, 45, 46, 47 and 350A.
4. Seventh Schedule: Entry 25 of List III versus Entry 66 of List I, and the five subjects the 42nd Amendment shifted.
5. Landmark cases in order: Mohini Jain, Unni Krishnan, T.M.A. Pai, Inamdar, Society for Unaided Private Schools, Pramati.
6. Delhi's constitutional position: Art 239AA, the 69th and 70th Amendments, 70 MLAs, 7 ministers, and the three excluded subjects.

1. The map: where education sits in the Constitution
Education appears in four places: Part III rights, Part IV directives, Part IVA duties and the Seventh Schedule lists. Knowing which Part an Article belongs to answers half the statement questions, because the Part decides whether a court can enforce it.

- **Part III (Art 12 to 35), Fundamental Rights:** enforceable by courts. Education Articles here are **21A, 28, 29, 30** and the equality clauses **15(3), 15(4), 15(5), 15(6).**
- **Part IV (Art 36 to 51), Directive Principles:** not enforceable by any court (**Art 37**), but fundamental in governance. Education directives are **Art 41, 45, 46**, with **39(e), 39(f)** and **47** on children's health.
- **Part IVA (Art 51A), Fundamental Duties:** eleven duties; **51A(k)** binds the parent or guardian.
- **Seventh Schedule:** decides who may legislate. **Entry 25 of List III (Concurrent)** is "Education"; **Entries 63 to 66 of List I (Union)** cover institutions of national importance and standards in higher education.

```

`mermaid flowchart TD
  C[Constitution of India] --> P3[Part III Fundamental Rights]
  C --> P4[Part IV Directive Principles]
  C --> P4A[Part IVA Fundamental Duties]
  C --> S7[Seventh Schedule Lists]
  P3 --> A21[Art 21A, 28, 29, 30]
  P4 --> A45[Art 41, 45, 46]
  P4A --> A51[Art 51A k parent duty]
  S7 --> E25[Entry 25 Concurrent List]
  
```

2. Basics the paper still tests

Dates, counts and names from the making of the Constitution come as one or two easy marks.

- Constituent Assembly first met **9 December 1946**.
Drafting Committee chair: **Dr B.R. Ambedkar**.
Constitution adopted **26 November 1949**
(Constitution Day), in force **26 January 1950**.
- Originally **395 Articles, 22 Parts, 8 Schedules**. Today **12 Schedules** and **25 Parts** (Parts IVA, IXA, IXB and XIVA were added; Part VII was repealed by the 7th Amendment).
- The Preamble has been amended **once**, by the **42nd Amendment, 1976**, adding "socialist", "secular" and "integrity".
- **Art 32** is the right to constitutional remedies, called the "heart and soul" of the Constitution by Ambedkar. It can be used only to enforce Fundamental Rights. **Art 226** gives High Courts a wider writ power, usable "for any other purpose" too, that is, for ordinary legal rights as well. A Delhi government teacher with a routine service grievance, such as an illegal termination order, does not go straight to the Supreme Court under Art 32. The case goes first to the **Central Administrative Tribunal**, and its order can then be challenged in the Delhi High Court under Art 226 (L. Chandra Kumar, 1997).

3. Fundamental Rights that reach the school gate

About a dozen Articles of Part III deal with admissions, fees, religion in school, minority schools

and child labour.

Equality (Art 14, 15, 16). Art 14 gives equality before law; Mohini Jain (1992) used it to strike down capitation fees. **Art 15(3)** lets the State make special provisions for women and children, which is the constitutional basis for girls' hostels and the Kasturba Gandhi Balika Vidyalayas. **Art 15(4)** was added by the **1st Amendment, 1951** after the Champakam Dorairajan case struck down a Madras communal admission order. It lets the State make special provision for socially and educationally backward classes and SC/ST. **Art 15(5)**, added by the **93rd Amendment, 2005** (in force **20 January 2006**), extends this to admission in **private educational institutions, aided or unaided, except minority institutions** under Art 30(1). **Art 15(6) and 16(6)**, added by the **103rd Amendment, 2019**, allow up to **10 per cent for Economically Weaker Sections**; the Supreme Court upheld them in **Janhit Abhiyan (2022)** by a 3:2 majority.

Art 19(1)(g). Running a school is an "occupation". In **T.M.A. Pai Foundation (2002, 11 judges)** the Supreme Court held:

- all citizens may establish educational institutions under Art 19(1)(g);
- minorities have the additional protection of Art 30(1);
- capitation fees and profiteering are barred, but a reasonable surplus for development is allowed.

This is why Delhi can regulate the fees of private schools (Delhi School Education Act 1973, and the Delhi School Education (Transparency in Fixation and Regulation of Fees) Act 2025) but cannot take over their management without cause.

Art 21 and 21A. The right to education was first read into the right to life in **Mohini Jain v State of Karnataka (1992)**. **Unni Krishnan v State of Andhra Pradesh (1993)** narrowed it: the right to free education is fundamental **only up to the age of 14**; beyond that it depends on the State's economic capacity under Art 41 and 45. Parliament then wrote **Art 21A** in 2002 (Section 4 below).

Art 24. No child **below 14** may be employed in a factory, mine or any other hazardous employment. It is a Fundamental Right, not a directive. The Child and Adolescent Labour (Prohibition and Regulation) Act gives it teeth. If a Vice Principal sees a Class 7 student missing school to work in a workshop, that is an Art 24 violation, not merely an attendance problem.

Art 25 to 28: religion in school.

- **Art 28(1):** no religious instruction in an institution **wholly maintained out of State funds**.
- **Art 28(2):** the exception is an institution administered by the State but set up under an endowment or trust that requires religious instruction.
- **Art 28(3):** in an institution **recognised by or aided by the State**, nobody can be made to attend

religious instruction or worship without consent; for a minor, the **guardian's** consent is needed.

In **Aruna Roy (2002)** the Court held that teaching *about* religions as part of value education is not "religious instruction". A Delhi government school is wholly State-funded, so it may teach comparative religion in a moral-science period but may not give instruction in one faith.

Art 29 and 30: minorities.

- **Art 29(1):** any section of citizens with a distinct **language, script or culture** has the right to conserve it.
- **Art 29(2):** no citizen may be denied admission to a State-maintained or State-aided institution **only** on grounds of **religion, race, caste, language** or any of them.
- **Art 30(1):** all **religious or linguistic** minorities may establish and administer educational institutions of their choice.
- **Art 30(1A)**, inserted by the **44th Amendment, 1978:** if a minority institution's property is acquired, the compensation fixed must not restrict or abrogate the Art 30(1) right.
- **Art 30(2):** the State may not discriminate in giving aid.

In **St Stephen's College v University of Delhi (1992)** the Court allowed an aided minority college to reserve up to **50 per cent** of seats for its own community. Because of **Pramati (2014)**, minority schools in Delhi

are outside the RTE Act, so the Directorate of Education's 25 per cent EWS/DG draw does not include them.

4. Article 21A and the 86th Amendment, line by line

The 86th Amendment Act, 2002 made three changes, and all three are tested together. Parliament passed it in 2002 (assent **12 December 2002**), but the Article came into force only on **1 April 2010**. That is the same day as the **Right of Children to Free and Compulsory Education Act, 2009 (Act 35 of 2009)**. The gap is about seven years because Art 21A gives the right "in such manner as the State may, by law, determine", so it needed a law before it could work.

- **Art 21A (Part III):** "The State shall provide free and compulsory education to all children of the age of **six to fourteen years** in such manner as the State may, by law, determine."
- **Art 45 (Part IV), substituted:** "The State shall endeavour to provide **early childhood care and education** for all children until they complete the age of **six years**." The **original Art 45** asked the State to provide free and compulsory education for children up to 14 **within ten years** of 1950.
- **Art 51A(k) (Part IVA), added:** a **parent or guardian** must provide opportunities for education to his child or ward between **six and fourteen** years. It is the **eleventh** Fundamental Duty.

Memory aid: **State 6 to 14, parent 6 to 14, ECCE under 6**

6. The State's duty and the parent's duty cover the

same age band; the directive covers the years before it.

``mermaid timeline 1950 : Art 45 ten-year target
1956 : 7th Amendment, Art 350A 350B 1976 : 42nd,
education Concurrent List 1993 : Unni Krishnan,
right till 14 2002 : 86th Amendment, Art 21A 2010
: Art 21A and RTE in force 2014 : Pramati,
minority schools exempt ``

What the RTE Act does with Art 21A (in brief; it has its own unit).

- Every child aged 6 to 14 has a right to elementary education in a neighbourhood school.
- It bars capitation fees and screening.
- **Section 12(1)(c)** requires private unaided schools to admit at least **25 per cent** disadvantaged and weaker-section children at entry level.

The Supreme Court upheld this for non-minority schools in **Society for Unaided Private Schools of Rajasthan (2012)**. In **Lucknow Public School v State of UP (28 April 2026)** it held that a school must first admit the child allotted under the quota and raise eligibility disputes afterwards, because refusal violates Art 21A.

5. Directive Principles for education and children

Part IV tells the State what to aim for; Art 37 says no court can force it. The exam contrasts these with the enforceable rights in Part III.

- **Art 37:** Part IV is **not enforceable by any court**, yet "fundamental in the governance of the country",

and the State must apply it in making laws.

- **Art 39(e) and 39(f):** the tender age of children must not be abused. Children must get opportunities to develop in freedom and dignity and be protected against exploitation and against moral and material abandonment. Clause (f) was recast by the **42nd Amendment, 1976**.
- **Art 41:** right to work, **to education** and to public assistance in cases of unemployment, old age, sickness and disablement, within the limits of economic capacity. Unni Krishnan leaned on this for education beyond 14.
- **Art 45:** ECCE for children below six (after 2002).
- **Art 46:** promote with special care the educational and economic interests of **weaker sections, in particular SC and ST**, and protect them from social injustice and exploitation. Pre-matric and post-matric scholarships run on this directive.
- **Art 47:** raise nutrition levels and standard of living and improve public health. PM POSHAN (the mid-day meal) rests on Art 47 read with Art 21A.

Contrast pair that traps candidates: **Art 41** is "education" in the welfare sense (adult and beyond 14); **Art 45** is early childhood; **Art 46** is SC/ST and weaker sections.

6. Fundamental Duties (Part IVA)

Eleven duties, one Article, non-justiciable, two Amendments.

- The **42nd Amendment, 1976** inserted Part IVA with **ten duties**, on the recommendation of the **Swaran Singh Committee**.
- The **86th Amendment, 2002** added the eleventh, **51A(k)**.
- The Justice J.S. Verma Committee (1999) worked out how to teach them in schools.

The duties that come up in education papers:

- **51A(e)**: promote harmony and renounce practices derogatory to the dignity of women.
- **51A(f)**: value and preserve the rich heritage of our composite culture.
- **51A(g)**: protect and improve the natural environment and have compassion for living creatures.
- **51A(h)**: develop **scientific temper, humanism and the spirit of inquiry and reform**.
- **51A(j)**: **strive towards excellence** in all spheres of individual and collective activity.
- **51A(k)**: parent or guardian to provide opportunities for education to the child or ward aged 6 to 14.

"Paying taxes honestly" was suggested by the Swaran Singh Committee but is **not** in Art 51A. The duties apply to **citizens**, not to foreigners. No court can directly enforce them, though courts use them to interpret laws.

7. Language provisions a school head must know

Part XVII (Art 343 to 351) and the Eighth Schedule decide the official language and protect linguistic minorities in schools.

- **Art 343:** Hindi in **Devanagari** script is the official language of the Union, with the international form of Indian numerals. English was to continue for 15 years; the **Official Languages Act, 1963** continued it indefinitely.
- **Art 345:** a State legislature may adopt any language of the State. Delhi's own law, the Delhi Official Languages Act, 2000, makes Hindi the official language and Urdu and Punjabi second official languages.
- **Art 350A:** every **State and local authority** shall endeavour to provide adequate facilities for **instruction in the mother tongue at the primary stage** to children of **linguistic minority groups**; the **President** may issue directions.
- **Art 350B:** a **Special Officer for Linguistic Minorities**, appointed by the **President**, reports to the President. The President has the reports laid before **each House of Parliament** and sent to the State governments concerned.
- Both 350A and 350B were inserted by the **7th Amendment, 1956** (States Reorganisation), not by the 42nd.
- **Art 351:** duty of the Union to promote the spread of Hindi, drawing on Sanskrit and the Eighth Schedule languages.

- **Eighth Schedule: 22 languages;** 14 originally; Sindhi (21st Amendment, 1967); Konkani, Manipuri, Nepali (71st, 1992); Bodo, Dogri, Maithili, Santhali (92nd, 2003).

8. Seventh Schedule: who makes law on education

Since 1976 both Parliament and State legislatures can make laws on education, and the Centre's law wins a conflict. Before the 42nd Amendment, "Education" was **Entry 11 of the State List**. The **42nd Amendment Act, 1976** deleted it and placed **Entry 25 in List III (Concurrent)**: "Education, including technical education, medical education and universities, subject to the provisions of entries 63, 64, 65 and 66 of List I; vocational and technical training of labour."

Entry 25 is subject to these Union List entries:

Entry (List I)	What it covers
63	Institutions of national importance named in the Constitution: BHU, AMU, Delhi University , plus any Parliament declares
64	Scientific or technical institutions financed by the Union and declared of national importance (IITs, for example)
65	Union agencies for professional, vocational or technical training, including police training
66	Coordination and determination of standards in higher education, research, scientific and technical institutions (the basis of the UGC Act, AICTE Act, NCTE Act)

The same 42nd Amendment moved **five** subjects to the Concurrent List: **education, forests, protection of wild animals and birds, weights and measures, and administration of justice (constitution of courts other than the Supreme Court and High Courts).**

Public health stayed in the State List (Entry 6).

Art 254 settles conflicts.

- If a State law on a Concurrent subject is repugnant to a Central law, the **Central law prevails**.
- A State law reserved for the President and given assent prevails in that State, but Parliament may still override it.

So the RTE Act, 2009 (Centre) and the Delhi School Education Act, 1973 (Delhi) both operate, and where they clash the RTE Act governs. The Delhi Assembly gets its power over education through **Art 239AA(3)(a)**, which lets it make laws on Concurrent List matters applicable to Union Territories.

Local bodies.

- The **73rd Amendment, 1992** added Part IX and the **Eleventh Schedule (29 subjects)** for Panchayats. Items **17 to 21** cover education (including primary and secondary schools), technical training and vocational education, adult and non-formal education, libraries, and cultural activities.
- The **74th Amendment, 1992** added Part IXA and the **Twelfth Schedule (18 subjects)** for Municipalities, including promotion of cultural, educational and aesthetic aspects.

In Delhi, the Municipal Corporation of Delhi runs most primary schools, and the Directorate of Education runs government schools mainly from Class 6 to 12 (Sarvodaya Vidyalayas also have primary classes). The NDMC and the Delhi Cantonment Board run their own schools.

9. Amendments to remember, in one table

Amendment	Year	Education effect
1st	1951	Art 15(4): special provision for SEBC, SC, ST
7th	1956	Art 350A, 350B inserted
42nd	1976	Education to Concurrent List (Entry 25); Part IVA duties; Preamble words
44th	1978	Art 30(1A) on compensation to minority institutions
73rd and 74th	1992	Eleventh and Twelfth Schedules with education subjects
86th	2002	Art 21A; new Art 45; Art 51A(k); in force 1 April 2010
93rd	2005	Art 15(5): reservation in private institutions, minority exempt
103rd	2019	Art 15(6), 16(6): 10 per cent EWS
106th	2023	One-third seats for women in the Lok Sabha, State Assemblies and the Delhi Assembly (Art 239AA), after the delimitation that follows the first Census after commencement

The **106th Amendment (Nari Shakti Vandan Adhiniyam)** is the latest enacted amendment this pack

can confirm. When this was written, two Bills were pending before Joint Parliamentary Committees:

- the **Constitution (129th Amendment) Bill, 2024** on simultaneous elections;
- the **Constitution (130th Amendment) Bill, 2025** on removing ministers who are detained for 30 days.

Check before the exam whether either has been enacted. If so, the count moves past 106.

10. Landmark cases in order

Seven judgments explain how a directive became a right and where private and minority schools stand. Learn them as a story, not a list.

1. **Mohini Jain v State of Karnataka (1992)**: right to education flows from Art 21; **capitation fee violates Art 14**.
2. **Unni Krishnan v State of AP (1993, 5 judges)**: right to free education is fundamental **only till 14**; after that it depends on economic capacity (Art 41). It also devised a "free seat and payment seat" scheme for professional colleges.
3. **T.M.A. Pai Foundation v State of Karnataka (2002, 11 judges)**: education is an "occupation" under Art 19(1)(g). It scrapped the Unni Krishnan seat scheme and held that minority status is decided State by State. No capitation fees and no profiteering, but a reasonable surplus is allowed.
4. **P.A. Inamdar v State of Maharashtra (2005, 7 judges)**: the State cannot impose its reservation policy on **unaided** private professional institutions,

minority or not. Parliament answered with the **93rd Amendment** and Art 15(5).

5. Ashoka Kumar Thakur v Union of India (2008):

upheld the 93rd Amendment and the Central Educational Institutions (Reservation in Admission) Act, 2006 for State and aided institutions, with 27 per cent OBC reservation excluding the creamy layer.

6. Society for Unaided Private Schools of Rajasthan v Union of India (2012):

the RTE Act and its 25 per cent quota are valid for government, aided and **unaided non-minority** schools; unaided minority schools are exempt.

7. Pramati Educational and Cultural Trust v Union of India (2014, 5 judges):

Art 15(5) and Art 21A are constitutionally valid; the RTE Act does **not** apply to **minority schools, aided or unaided**, because of Art 30(1).

Other cases cited in education papers:

- **Bijoe Emmanuel (1986):** students who stood silently during the National Anthem could not be expelled (Art 19(1)(a) and 25).
- **Avinash Mehrotra (2009):** read fire-safety norms for schools into Art 21A.
- **Dr Jaya Thakur v Union of India (30 January 2026):** menstrual health is part of Art 21, linked to Art 21A. The Court ordered free sanitary pads and working separate toilets for girls in Classes 6 to 12.

11. Delhi's constitutional position

Delhi is a Union Territory with a Legislative Assembly under Art 239AA, and three subjects stay with the Union.

- Delhi was a Part C State, with an elected Assembly from 1952 to 1956, and became a Union Territory on **1 November 1956**.
- It got its present shape through the **69th Amendment Act, 1991** (in force **1 February 1992**). This inserted **Art 239AA** and **239AB** and renamed it the **National Capital Territory of Delhi**.
- The **GNCTD Act, 1991** fills in the detail; the first Assembly was elected in **1993**.
- **Assembly: 70 members**, all directly elected. It may legislate on State List and Concurrent List matters applicable to UTs, **except Entries 1 (public order), 2 (police) and 18 (land)** of the State List (Art 239AA(3)(a)).
- **Repugnancy**: if an Assembly law conflicts with a law of Parliament, **Parliament's law prevails** (Art 239AA(3)(c)), subject to the Presidential-assent proviso.
- **Council of Ministers: not more than 10 per cent** of the Assembly, so **7 including the Chief Minister** (Art 239AA(4)). It aids and advises the Lieutenant Governor; a difference of opinion goes to the **President**.
- **Chief Minister** is appointed by the **President**, and other ministers by the President on the CM's advice

(Art 239AA(5)); they are collectively responsible to the Assembly (Art 239AA(6)).

- **Lieutenant Governor** is the Administrator under **Art 239**. **Delhi Police** reports to the Union Home Ministry.
- **70th Amendment Act, 1992** amended **Art 54** so that elected MLAs of Delhi and Puducherry vote for the **President of India**.
- Delhi sends **7 members to the Lok Sabha** and **3 to the Rajya Sabha**; the **Delhi High Court** dates from **31 October 1966**.

```
`mermaid flowchart TD
  PR[President of India] --> LG[Lieutenant Governor, Art 239]
  PR --> CM[Chief Minister appointed]
  CM --> COM[Council of Ministers, max 7]
  COM --> LA[Legislative Assembly, 70 MLAs]
  LA --> ST[State and Concurrent subjects]
  PAR[Parliament] --> EX[Police, public order, land]
  ``
```

The services dispute, step by step.

- **July 2018:** a five-judge bench held that the LG is bound by the aid and advice of the ministers and has no independent decision-making power. His only option is to refer a difference of opinion to the President under the Art 239AA(4) proviso.
- **11 May 2023:** another Constitution Bench held that "services" fall under the Delhi government, except where they relate to public order, police and land.
- **GNCTD (Amendment) Act, 2023:** Parliament then created the **National Capital Civil Service Authority**

to recommend transfers and postings. The Chief Minister chairs it, with the Chief Secretary and the Principal Home Secretary as members, and the LG's decision is final if they differ. The Act was challenged in the Supreme Court.

- **GNCTD (Amendment) Act, 2021:** earlier, this had declared that "Government" in laws passed by the Assembly means the LG.

Who holds office (per the knowledge base, as of October 2026). Chief Minister **Rekha Gupta** and Education Minister **Ashish Sood**, both since **February 2025**. **V.K. Saxena** was appointed Lieutenant Governor in May 2022. The knowledge base does not confirm the current holder, so check before the exam.

12. Constitutional current affairs, October 2025 to October 2026

The live items are appointments, a Presidential reference and two rulings on Art 21A.

- **Justice Surya Kant** became the **53rd Chief Justice of India on 24 November 2025**, succeeding Justice B.R. Gavai; he retires on 9 February 2027.
- **C.P. Radhakrishnan** was elected **Vice-President** in **September 2025** after Jagdeep Dhankhar resigned in July 2025 under **Art 67(a)**.
- **President Droupadi Murmu** has held office since July 2022; the next Presidential election is due in 2027.
- **Governor's assent:** in April 2025 the Supreme Court set timelines for Governors under Art 200 in the

Tamil Nadu case. The President then sought the Court's opinion under **Art 143**. In November 2025 a Constitution Bench said courts cannot fix such timelines or grant "deemed assent".

- **Dr Jaya Thakur (30 January 2026)**: menstrual health under Art 21, read with Art 21A.
- **Lucknow Public School v State of UP (28 April 2026)**: admit RTE-quota children first, dispute eligibility later.
- **Census 2027** (reference date 1 March 2027) is the "first Census after commencement" that triggers delimitation and the women's reservation under the **106th Amendment**.
- **Union Education Minister**: Dharmendra Pradhan resigned on 25 July 2026 and **Pralhad Joshi** holds additional charge, as reported in the news. The President accepted the resignation under **Art 75(2)**. Check whether a full-time minister has been named since.

Common traps

- **86th versus 93rd versus 42nd**: 86th = Art 21A (2002); 93rd = Art 15(5) (2005); 42nd = Concurrent List and duties (1976). The 44th gave Art 30(1A), not 21A.
- **Part placement**: Art 21A is Part III; Art 45 is Part IV; Art 51A(k) is Part IVA. "Art 21A is a Directive Principle" is always false.
- **Who is bound**: Art 21A binds the **State**; Art 51A(k) binds the **parent or guardian**; Art 350A binds **State and local authority**.

- **Age bands:** Art 21A and 51A(k) are **6 to 14**; new Art 45 is **below 6**; Art 24 is **below 14**; RPwD Act free education is **6 to 18**.
- **Dates:** 86th Amendment assent **12 December 2002**; Art 21A in force **1 April 2010**. An option saying "in force 2002" is wrong.
- **Art 28:** wholly State-funded means **no** religious instruction; recognised or aided means **consent** needed. Statement writers swap these.
- **Art 29(2)** lists religion, race, caste, **language**; it does not say "sex" or "place of birth" (those are in Art 15(1)).
- **Entry 25 List III** (education) versus **Entry 66 List I** (standards in higher education) versus **Entry 63 List I** (BHU, AMU, DU).
- **42nd Amendment shifts:** education, forests, wildlife, weights and measures, administration of justice. **Not** public health, not agriculture, not police.
- **Cases:** Mohini Jain (1992) came **before** Unni Krishnan (1993); Pai (2002) **before** Inamdar (2005). Rajasthan Schools (2012) exempted only **unaided** minority schools; Pramati (2014) exempted **all** minority schools, aided or unaided.
- **Delhi:** 69th Amendment created the Assembly; **70th** put Delhi MLAs in the Presidential electoral college; CM is appointed by the **President**, not the LG; ministers **7**, not 10 or 12; Rajya Sabha **3**, not 5.
- **Fundamental Duties:** eleven, not ten; no duty to pay taxes or to vote.

Remember for the exam

1. Art 21A: 86th Amendment 2002, in force 1 April 2010, ages 6 to 14, Part III, "in such manner as the State may, by law, determine".
2. New Art 45: ECCE until six; original Art 45: free and compulsory education up to 14 within ten years.
3. Art 51A(k): parent or guardian, 6 to 14, eleventh duty; first ten by the 42nd Amendment on the Swaran Singh Committee's advice.
4. Art 37: Directive Principles not enforceable by any court.
5. Art 28(1) no religious instruction in wholly State-funded institutions; 28(3) consent in recognised or aided ones.
6. Art 29(2): no denial of admission only on religion, race, caste, language; Art 30(1): religious or linguistic minorities; 30(1A) by the 44th Amendment 1978.
7. Art 15(4) 1st Amendment 1951; 15(5) 93rd Amendment 2005; 15(6) and 16(6) 103rd Amendment 2019 (10 per cent EWS, upheld in Janhit Abhiyan 2022).
8. Art 41 work, education, public assistance; Art 46 SC, ST, weaker sections; Art 47 nutrition and public health; Art 24 no child under 14 in hazardous work.
9. Art 350A mother-tongue instruction at primary stage; Art 350B Special Officer appointed by the President; both by the 7th Amendment 1956.
10. 42nd Amendment 1976: education from State List Entry 11 to Concurrent List Entry 25; Union List

Entry 66 standards in higher education; Entry 63 BHU, AMU, DU.

11. Eleventh Schedule 29 subjects (items 17 to 21 education-related); Twelfth Schedule 18 subjects.
12. Mohini Jain 1992, Unni Krishnan 1993, T.M.A. Pai 2002, Inamdar 2005, Ashoka Kumar Thakur 2008, Rajasthan Schools 2012, Pramati 2014.
13. Delhi: 69th Amendment 1991 (in force 1 Feb 1992), Art 239AA, 70 MLAs, 7 ministers, no power over public order, police, land; 70th Amendment 1992 for the Presidential electoral college.
14. GNCTD (Amendment) Act 2023 created the National Capital Civil Service Authority after the 11 May 2023 judgment on services.
15. Current: CJI Surya Kant (53rd, 24 Nov 2025); Vice-President C.P. Radhakrishnan (Sept 2025); 106th Amendment 2023 is the latest confirmed amendment.

Sources

- Constitution of India (as amended), Parts III, IV, IVA, XVII; Seventh, Eighth, Eleventh and Twelfth Schedules; Art 239, 239AA, 239AB, 254.
- Constitution (Eighty-sixth Amendment) Act, 2002, and the commencement notification effective 1 April 2010.
- Constitution (Forty-second Amendment) Act, 1976; (Seventh Amendment) Act, 1956; (Forty-fourth Amendment) Act, 1978; (Ninety-third Amendment) Act, 2005; (One Hundred and Third Amendment)

Act, 2019; (One Hundred and Sixth Amendment)
Act, 2023.

- Right of Children to Free and Compulsory Education Act, 2009 (Act 35 of 2009).
- Government of National Capital Territory of Delhi Act, 1991, with the 2021 and 2023 Amendment Acts.
- Supreme Court judgments: Mohini Jain (1992), Unni Krishnan (1993), St Stephen's College (1992), L. Chandra Kumar (1997), T.M.A. Pai Foundation (2002), Aruna Roy (2002), P.A. Inamdar (2005), Ashoka Kumar Thakur (2008), Society for Unaided Private Schools of Rajasthan (2012), Pramati Educational and Cultural Trust (2014), Janhit Abhiyan (2022).
- Knowledge base: units/gk.md (Static GK notes, 2026); research/02-child-rights-law.md; research/05-current-affairs.md (digest Oct 2025 to Oct 2026, compiled 9 Oct 2026).
- M. Laxmikanth, Indian Polity (chapters on Fundamental Rights, Directive Principles, Fundamental Duties, Union Territories), for structure and amendment history.

Quick facts

- Art 21A (86th Amendment, 2002; in force 1 April 2010): free and compulsory education for children aged 6 to 14, in Part III, enforceable in court.
- New Art 45 (Part IV): early childhood care and education until age six; the original Art 45 set a

ten-year target for free education up to 14.

- Art 51A(k): the parent or guardian must provide education opportunities to the child or ward aged 6 to 14; it is the eleventh Fundamental Duty.
- Art 37: Directive Principles are not enforceable by any court but are fundamental in governance.
- Art 28(1): no religious instruction in institutions wholly maintained from State funds; Art 28(3): consent (guardian's for minors) needed in recognised or aided institutions.
- Art 29(2) bars denial of admission only on religion, race, caste or language; Art 30(1) protects religious and linguistic minorities; Art 30(1A) came by the 44th Amendment, 1978.
- Art 15(5) (93rd Amendment, 2005) allows reservation in private aided and unaided institutions except minority ones; it answered the Inamdar judgment of 2005.
- 42nd Amendment, 1976 moved education from State List Entry 11 to Concurrent List Entry 25; Union List Entry 66 covers standards in higher education.
- Art 350A (mother-tongue instruction at primary stage) and Art 350B (Special Officer for Linguistic Minorities, appointed by the President) were inserted by the 7th Amendment, 1956.

- Case order: Mohini Jain 1992, Unni Krishnan 1993 (right till 14), T.M.A. Pai 2002, Inamdar 2005, Rajasthan Schools 2012, Pramati 2014 (RTE Act does not apply to minority schools).
- Eleventh Schedule (73rd Amendment) has 29 Panchayat subjects including primary and secondary schools; Twelfth Schedule (74th Amendment) has 18.
- Delhi: 69th Amendment 1991 inserted Art 239AA; 70 MLAs; Council of Ministers at most 10 per cent (7); no power over public order, police and land; CM appointed by the President.
- 70th Amendment 1992 added Delhi and Puducherry MLAs to the electoral college for the President of India.
- GNCTD (Amendment) Act 2023 created the National Capital Civil Service Authority after the Supreme Court's 11 May 2023 ruling that services vest in the Delhi government.
- Current: Justice Surya Kant is the 53rd CJI (24 Nov 2025); C.P. Radhakrishnan is Vice-President (Sept 2025); the 106th Amendment (2023) is the latest confirmed amendment.